Portland Public Schools Capital Construction Bond Accountability Committee Charter

Background

Portland Public Schools (the District) has successfully referred multiple Capital Construction Bond Measures for voter approval. The District has established a community Bond Accountability Committee, an independent group of community members to review reports and audits of how bond dollars are being spent to provide accountability to the public until bond projects are completed. The Committee will assist the Board of Education (Board) in monitoring the planning, execution, and progress of the bond programs.

Committee Charge

The duties of the Committee are (i) to receive and review reports and other information on the current status and planned implementation of the bond programs, including bond project and program status reports, critical path schedules, budgets and expenditures, project prioritization within bond programs, identification of risks, bond-project management key performance indicators, and annual bond performance audits; (ii) to determine whether such status and implementation are consistent with the program approved by the voters; (iii) to report their findings and recommendations to the Board. The Committee informs and advises the Board, but does not have decision-making authority.

The Superintendent has ultimate responsibility for performance of staff engaged in the implementation of the bond programs.

Based on the information provided by staff, the Committee will regularly review and provide updates to the Board on:

- Whether the bond revenues are expended only for the purposes for which the bonds were approved and that bond revenues are not used for any purpose prohibited by law, including annual review of the bond performance audit and the District's financial audit as it relates to bond expenditures;
- Whether the bond proceeds are sufficient to complete the scope of work as outlined in the voter-approved bonds;
- Whether the projects planned, in progress, and completed will meet the scope of work specified in the voter-approved bonds;

- Whether bond referral planning is consistent with PPS vision and the 30-year progressive bond program model;
- Whether each of the projects is being delivered on schedule and within established budget ;and

- Whether the District's bond program management is consistent with industry standards.

Additionally, the Committee may provide feedback and/or advice to the Board on one or more of the following topics as they relate to the bond-funded capital programs:

• Alignment with the goals and principles of the Long Range Facilities Plan;

• Alignment with the goals of the Business Equity Policy;

• District standards and innovative practices for achieving lower maintenance and construction costs while improving operating efficiency, sustainability, and increasing building longevity;

• Historic preservation and school renovation opportunities compatible with the architecture of surrounding Portland neighborhoods;

• Potential capital partnerships for joint and shared use of PPS facilities;

• Development and implementation of the District's plan to improve seismic safety;

• Topics and scope for the annual performance audit work plan;

• Compliance with ADA; and

• Communicating key information related to the bonds to the Board, public groups, organizations and stakeholders.

The Committee will also review future bond planning processes and materials and provide advice to the Board, prior to bond referral, on:

• Cost-estimating processes related to proposed modernization efforts, new construction projects, and other potential scopes of work.

• Bond development risk management strategies including project cost escalation assumptions, contingency assumptions, bond management cost estimates, etc.

The Committee will use the Racial Equity and Social Justice framework in its review of bond projects and in providing advice to the Board. Any recommendation from the Committee to

the Board should include discussion of any possible impact on historically underserved student populations.

The Board by resolution may request the Committee to undertake other reasonable duties related to the Bond programs.

Reporting Structure and Cadence

The Committee will update the Board in the following manner:

- Quarterly report to the Board, in person unless otherwise specified by the Board

Written reports to the Board as neededCommittee Meeting Protocols

The Committee will generally adhere to the Board meeting protocols in Board Policy 1.70.011-P to make clear what recommendations are being made and that they have been adopted by a majority of the Committee. The Minutes of all Committee meetings should reflect Committee meeting attendance, the agenda items discussed, and the Committee's recommendations; Minutes of prior meetings should be reviewed and approved at the next Committee meeting. Meeting materials should be circulated with sufficient time for meaningful review by the Committee members and in coordination with the Committee Chair.

Committee Membership

The Committee shall consist of seven to ten members reflective of the diversity of Portland. The Committee will elect a chair and vice chair at the first meeting following July 1 each year.

The Committee shall be composed of individuals with a commitment to fairness and transparency and belief in the role of the public sector as stewards of public funds.

Membership of the Committee should display a commitment to and experience in one or more of the following:

• Building design, architecture, engineering

• Construction and/or public construction financing

• Workforce equity and/or career learning equity

• Public contracting, budgeting, and/or auditing

• Business equity, Minority-owned, Women-Owned, or Emerging Small Business (MWESB) opportunities in public works

• Curriculum development

• Technology infrastructure and investment

• One or more of any other specific bond project scopes of work

• The Committee members shall receive no direct or indirect compensation from the District for their services as members of the Committee.

• The Committee members may not have an active or pending contract with the District, nor enter into a contract during or within one year of the end of their term on the Committee.

• The Committee may not include any employee or official of the District, or any vendor, contractor or consultant of the District.

• If a Committee member resigns, violates the Committee Code of Ethics contained herein (see attachment), fails to attend two consecutive Committee meetings without reasonable excuse, or otherwise becomes unable to serve on the Committee, the Board may declare the position on the Committee to be vacant and appoint another qualified person to the Committee. At all times, Committee members serve at the discretion of the Board and may be removed by a vote of the majority of the Board.

•The Board may appoint members to staggered 2-, 3- and 4-year terms and may reapply for consideration to serve additional terms. A Committee member shall not hold the title of chairperson for more than 3 years. A Committee member may serve for a total of no more than eight years unless an additional term of service is authorized by the Board.

Committee Operations

The Committee operates in an advisory capacity to the Board. The Committee is not responsible for the bond program or project outcomes and does not direct staff including any contracted staff, consultants, contractors, or auditors. The charge to the Committee does not include:

• Approval of construction contracts;

• Approval of construction change orders;

• Appropriation of construction funds;

• Handling of legal matters;

• Approval or performance of audit scope of work;

• Approval of construction plans and schedules;

• Approval of the sale of bonds;

• Priorities and order of construction for the bond projects;

• Selection of architects, engineers, construction managers, project managers, and such other professional service firms;

• The approval of the scope or design for any project;

• The selection of independent audit firm(s), performance audit consultants and such other consultants as are necessary to support the performance of the Bond Program;

• Setting or approving schedules of design and construction activities;

• Activities, roles or responsibilities that have been designated by the Superintendent or her designee to staff or consultants, or any policy-making responsibilities;

• Approval of future bond scopes of work; or

• Approval of current or future project cost estimates.

Committee Meetings

• The Committee will meet no less than quarterly or as requested by the Board in a public meeting. Because the Committee reports to the Board of Education, all Committee meetings must comply with Oregon Public Meetings law. Accordingly, a quorum of the Committee may not meet in person or by email to discuss current or anticipated Committee work outside a public meeting.

• Committee meetings are advisory and not related to formal decision-making by the Board. Committee meetings shall include opportunity for public comments.

• The Superintendent will assign and delegate the appropriate level of staff to support the Committee's work.

• District staff will provide necessary technical and administrative assistance as follows:

  - A meeting room, including any necessary audio/visual equipment;

  - Preparation and copies of any written meeting materials, such as agendas and reports; and distribution of those materials to the Committee in a timely manner.

- Provision of reports covering the School Bond Programs.

- Preparation of Committee meeting minutes and posting for public viewing and use on the PPS web site.

- District staff will attend Committee meetings in order to report on the status of capital improvement projects, to respond to questions, and to receive advice and counsel on the overall bond programs or any of their component parts. District project consultants may be asked to attend Committee meetings at the discretion of District staff or by request of the Committee.

Media Relations

Committee members are classified as volunteers serving terms under the guidance of the BAC Charter and the Board of Education. Committee members are neither required to or restricted from responding to media requests. Members can reach out to staff for direction or forward all media requests to District Communications for follow up.

Attachment

Portland Public Schools Capital Construction

Bond Citizen Accountability Committee:

Code of Ethics

A Code of Ethics provides general guidelines for Committee members to follow in carrying out their roles. Not all ethical issues that Committee members face are covered in this Code. However, this Code captures some of the critical areas that help define ethical and professional conduct for Committee members. Committee members are expected to strictly adhere to the provisions of this Code of Ethics.

Policy

Each Committee member must uphold the federal and Oregon Constitutions; the laws and regulations of the United States and the State of Oregon, including complying fully with the ethics laws found within ORS Chapter 244; and the policies, procedures, rules, and regulations of the District. Additionally, Committee members shall:

- Act in the best interest of the District and the public
- Make service on the Committee a high personal priority by participating constructively and consistently in Committee work
- Prepare for meetings by reading the agenda and supporting material and learning about the subject matter
- Participate in rational, informed deliberations by considering reliable information and thinking critically
- Use one's own judgment versus following the lead of others
- Be committed to serving the District as a whole rather than any part or any personal or political cause
- Avoid conflicts of interest or the appearance thereof
- Provide advice and counsel untainted by personal, professional, or political interest
- Adhere to the highest standards of personal and professional behavior

For a period of one (1) year after leaving the Committee, a former Committee member may not represent any person or organization for compensation in connection with any matter pending before the District that, as a Committee member, he or she participated in

personally and substantially. Specifically, for a period of one (1) year after leaving the Committee, a former Committee member and the companies and organizations for which the member works shall be prohibited from contracting with the District with respect to:

- bidding or proposing to provide services on projects funded by the bond proceeds; and/or

- any construction project funded by the District.